

TENTATIVE RULINGS

*For this week's calendar only, if requesting oral argument,
please call (530) 532-7153.*

1. 22CV02187 A, C v. COUNTY OF BUTTE

EVENT: Plaintiff's Motion to Consolidate Actions

While Plaintiff A.C. ("Plaintiff" herein) argues that the two related cases present identical factual and legal questions, the Court disagrees and finds instead that the two actions concern distinct legal issues which risk confusing the jury and prejudicing Defendant County of Butte ("Defendant" herein) if the cases are consolidated for trial. Plaintiff's Motion to Consolidate Actions is DENIED. Counsel for the Defendant shall submit a form of order within two weeks and once submitted and executed by the Court, 22CV the clerk is directed to file the Order in both cases.

2. 22CV02594 MOFFITT, DEREK C ET AL v. MOFFITT, TERESA L ET AL

EVENT: Motion to Amend Complaint to Bring in New Party Defendant

Plaintiffs Derek C. Moffitt and Sandi Moffitt's Motion to Amend Complaint to Bring in New Party Defendant is unopposed and is granted. The Court will sign the form of order submitted by counsel.

3. 23CV03194 CHEN, MAOMEI v. TOBUREN, FRANCIS ET AL

EVENT: Motion of M & S Wesley Tree Service, Inc. to Bifurcate the Issues of Liability and Damages

Code of Civil Procedure §§598, 1048(b), and 128(3) provide that the Court possesses broad discretion to bifurcate trial on the issues of liability and damages when the convenience of witnesses, ends of justices, or judicial economy are promoted, as well as when prejudice may be avoided by separate trials. Here, Defendant M&S Wesley has not shown that bifurcation would promote the convenience of witnesses, the ends of justice, or the efficiency of this litigation. The Court finds that liability and damages are intertwined through shared causation and incident evidence, thus bifurcation would be inappropriate. The Motion of M & S Wesley Tree Service, Inc. to Bifurcate the Issues of Liability and Damages is denied.

4-7. 24CV00765 HATZIS, MORGAN RAE v. PRIETO, MARIA NERISSA ET AL

EVENTS: (1) Defendants' Motion to Compel Morgan Rae Hatzis' Further Responses to Requests for Admissions, Set Two and for Sanctions

(2) Defendants' Motion to Compel Morgan Rae Hatzis' Further Responses to Special Interrogatories, Set Two and for Sanctions